

Court No. - 21

Case :- WRIT - C No. - 28135 of 2014

Petitioner :- Nitin Kumar Gupta

Respondent :- State Of U.P. & 3 Others

Counsel for Petitioner :- Shyam Sundar

Counsel for Respondent :- C.S.C.,Baleshwar Chaturvedi

Hon'ble Krishna Murari,J.

Hon'ble Mrs. Vijay Lakshmi,J.

We have heard learned counsel for the parties.

The petitioner has approached this Court seeking a mandamus to command the respondent no. 2 to consider and dispose of the application/representation dated 21.12.2013 filed by him.

It is submitted by learned counsel for the petitioner that the petitioner made an application seeking correction in bill amount and address mentioned therein but when no action was taken he approached this Court by filing writ petition no. 64415 of 2013, which was disposed of vide order dated 26.11.2013 giving liberty to the petitioner to make an application under clause 6.15 of U.P. Electricity Supply Code, 2005 with the direction to the authority to consider and decide the same in accordance with law. Learned counsel for the petitioner further submitted that in pursuance of the liberty given by this Court, an application dated 21-12-2013 along with certified copy of the order was moved before the respondent no. 2 but till date the same has not been decided.

It is surprising that despite the order of this Court, the Executive Engineer has failed to decide the application of the petitioner. Inaction on the part of the Executive Engineer clearly tantamounts to contempt. However, the Court in its magnanimity allows one more opportunity to the respondent no. 2, Executive Engineer, Electricity Department, Pukhrayan, district Kanpur Dehat to consider and decide the application of the petitioner dated 21.12.2013 in accordance with the direction contained in the order dated 26.11.2013 passed in writ petition no. 64415 of 2013 within a period of one month from the date of production of a certified copy of this order before him.

Order Date :- 21.5.2014/nd